

TOWN OF GEORGETOWN, COLORADO
Ordinance No. 5
Series 2026

TITLE: AN ORDINANCE OF THE BOARD OF SELECTMEN OF THE TOWN OF GEORGETOWN, COLORADO, AMENDING SECTION 17.20.090 OF THE GEORGETOWN MUNICIPAL CODE CONCERNING PERSONAL WIRELESS TELECOMMUNICATION SERVICE FACILITIES TO CONFORM TO COLORADO HOUSE BILL 25-1056 AND APPLICABLE FEDERAL LAW REGARDING SHOT CLOCK DEADLINES, TOLLING, AND DEEMED-GRANTED REMEDIES FOR WIRELESS FACILITY APPLICATIONS.

WHEREAS, the Town of Georgetown (the "Town") is a territorial charter municipality organized and existing under the laws of the State of Colorado, with authority to adopt ordinances for the protection of the public health, safety, and welfare pursuant to Section 5.24 of the Territorial Charter; and

WHEREAS, the Town has previously adopted Section 17.20.090 of the Georgetown Municipal Code to regulate the siting, design, and permitting of personal wireless telecommunication service facilities within the Town in conformance with applicable federal and state law; and

WHEREAS, federal law, including the Telecommunications Act of 1996, Pub. L. No. 104-104, 110 Stat. 56 (codified as amended in scattered sections of 47 U.S.C.), and the FCC's implementing regulations, requires local governments to act on wireless facility applications within specified time periods (commonly referred to as "shot clocks"), and provides that failure to act within those periods creates a presumption of unreasonable delay; and

WHEREAS, federal shot clocks applicable to eligible facilities requests ("EFRs") and small cell applications on existing poles require action within 60 days, and the failure to act on an EFR within the designated period results in the application being deemed granted under federal law; and

WHEREAS, Colorado House Bill 25-1056, effective January 1, 2026, which amends C.R.S. §§ 29-27-401 through 29-27-403 and adds a new C.R.S. § 29-27-405, and which: (1) resets state shot clock deadlines to conform generally to federal law; (2) expands the deemed-granted remedy to apply to all wireless facility application types, not only EFRs; (3) establishes specific tolling procedures for incomplete applications, including a requirement that the Town identify the specific regulation underlying an incompleteness determination; and (4) adds a new tolling basis permitting the Town to extend a shot clock by up to 45 days when it lacks resources to review an application due to other pending priority land use matters; and

WHEREAS, Colorado H.B. 25-1056 expressly provides that nothing in state law relieves a local government of its obligations to comply with federal requirements, meaning that where federal shot clocks are shorter than state shot clocks, the federal deadlines control; and

WHEREAS, the Board of Selectmen finds that amendments to Section 17.20.090 are necessary to bring the Town's wireless facility review procedures into conformance with Colorado H.B. 25-1056 and applicable federal law, and to protect the Town from the deemed-granted remedy by establishing clear and enforceable procedures for timely action on all wireless facility applications; and

WHEREAS, Colorado H.B. 25-1056 expressly preserves all local government authority over the aesthetic review of wireless facilities, and the amendments herein do not alter or diminish the Town's design, siting, or aesthetic standards under Section 17.20.090.

NOW, THEREFORE, BE IT ORDAINED BY THE BOARD OF SELECTMEN OF THE TOWN OF GEORGETOWN, COLORADO:

Section 1. CMRS Review and Division Deadlines. Section 17.20.090 of the Georgetown Municipal Code is hereby amended by the addition of a new subsection (h), to read in its entirety as follows:

(h) Review and response deadlines. In compliance with federal law and regulations and C.R.S. §§ 29-27-401 through 29-27-405, as amended, the Town shall review and act upon all applications for personal wireless telecommunication service facilities within the following time periods:

1. Review for completeness. Upon receipt of an application for a personal wireless telecommunication service facility under this Section 17.20.090, the filing date shall be recorded, and the Town will make a determination of whether the application is complete. If determined to be complete, the applicant shall be notified, and the review deadlines in this subsection shall be followed.
2. Notice of incompleteness. If an application is incomplete, the Town shall notify the applicant in writing of the specific documents or information required to complete the application and shall identify the specific regulation or code provision creating the requirement to provide each item of missing documentation or information. Such notice shall be provided:
 - a. Within 30 days of the date the application is filed, for all application types other than eligible facilities requests; or
 - b. Within 10 days of the date the application is filed, for applications that qualify as eligible facilities requests under 47 U.S.C. § 1455(a) and 47 C.F.R. § 1.6003.Failure to provide timely written notice of incompleteness as required by this subsection eliminates the Town's ability to toll the applicable shot clock on the basis of an incomplete application. The shot clock is tolled from the date written notice of incompleteness is provided until the date the applicant submits all information identified in the notice.
3. Applicant failure to respond to incompleteness notice. Should an applicant fail to respond to the Town's written notice of incompleteness within 60 days of such notification, the applicant shall be deemed to have abandoned the application.
4. Sixty-day applications. The Town shall act on the following applications within 60 days of the filing of a complete application:
 - a. Applications that qualify as eligible facilities requests under 47 U.S.C. § 1455(a) that do not constitute a "substantial change" as defined in 47 C.F.R. § 1.6100(b)(7); and
 - b. Applications for collocation of small cell facilities using a preexisting structure.

Note: The 60-day deadline for applications described in this subsection 4 reflects the applicable federal shot clock under 47 C.F.R. § 1.6003, which is

more restrictive than the 90-day state shot clock and therefore controls pursuant to the federal supremacy clause and the express provision of C.R.S. § 29-27-403 that nothing in state law relieves a local government of its federal obligations.

5. Ninety-day applications. The Town shall act on the following applications within 90 days of the filing of a complete application:
 - a. Applications for new small cell facilities on a new structure;
 - b. Applications for collocation on an existing wireless telecommunications facility other than a small cell facility, where the collocation does not constitute a substantial change in the physical dimensions of the support structure as defined in 47 C.F.R. § 1.6100(b)(7); and
 - c. Applications for replacement or modification of existing small cell facilities or small cell networks.
6. One hundred fifty-day applications. The Town shall act on the following applications within 150 days of the filing of a complete application:
 - a. Applications for new personal wireless telecommunication service facilities on a new structure, other than small cell facilities; and
 - b. Applications for new installations of personal wireless telecommunication service facilities on existing structures where no wireless facilities are currently present.
7. Deemed-granted remedy. If the Town fails to approve or deny any application subject to the deadlines set forth in subsections 4, 5, or 6 of this subsection (h) within the applicable time period, and the applicant has provided any public notice required by local law, the application shall be deemed granted. A deemed approval becomes effective when the applicant provides written notice to the Town after expiration of the applicable review period that the application has been deemed granted. Nothing in this subsection limits the Town's authority to condition a deemed-granted approval upon compliance with applicable design standards, safety requirements, and other nondiscriminatory requirements.
8. Resource-constraint tolling. In addition to tolling for an incomplete application under subsection 2, a shot clock may be extended by up to 45 days if the Town determines, in writing, that it lacks sufficient resources to review the application within the applicable time period due to other pending land use application(s) that are intended to address affordable or attainable housing, renewable energy, projects of governmental entities, or any other project for which applicable law provides a deadline for action. Such written determination shall be provided to the applicant prior to expiration of the original shot clock period.
9. Federal law compliance. Nothing in this subsection relieves the Town of its obligations to comply with applicable federal law and FCC regulations governing the review of wireless facility applications, including applicable federal shot clock deadlines and the deemed-granted remedy for eligible facilities requests under 47 U.S.C. § 1455(a). Where federal law imposes a shorter deadline than the state or local deadlines set forth in this subsection, the federal deadline controls."

Section 2. Repeal of Section 17.20.090(g)(6). Section 17.20.090(g)(6) of the Georgetown Municipal Code, which provides a 90-day review period for a small cell permit application, is hereby repealed in its entirety. Review deadlines for all personal wireless telecommunication service facility applications, including small cell facilities, are governed by the new subsection (h) added by Section 1 of this Ordinance.

Section 3. Severability, Conflicting Ordinances Repealed. If any section, subsection or clause of this Ordinance shall be deemed to be unconstitutional or otherwise invalid, the validity of the remaining sections, subsections and clauses shall not be affected thereby. All other ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed.

Section 4. Effective Date. This Ordinance shall take effect upon posting as required by Section 5.26 of the Territorial Charter.

INTRODUCED AND APPROVED ON FIRST READING at a regular meeting of the Board of Selectmen by a vote of 6 to 6 on this 26th day of May 2026, and ordered posted with notice of public hearing for second reading.

ADOPTED ON SECOND READING following public hearing at a regular meeting of the Board of Selectmen by a vote of 6 to 0, on this 23rd day of June 2026.

Section 2. Effective date. This ordinance shall take effect upon being posted up as provided by Section 5.26 of the Territorial Charter.

INTRODUCED, READ, APPROVED AND ORDERED POSTED IN FULL ON FIRST READING on the 26 day of May, 2026.

INTRODUCED ON SECOND READING, FINALLY ADOPTED AND ORDERED POSTED AFTER PUBLIC HEARING on the 23 day of June, 2026.

TOWN OF GEORGETOWN

By:


Georgia Kofoed, Police Judge


ATTEST: Brigitte Korte, Town Clerk

Posted up in full on the Town's website and at Town Hall and two (2) other designated posting locations within the limits of the Town after final adoption, in accordance with Section 5.26 of the Territorial Charter.


Brigitte Korte, Town Clerk

Date: July 20, 2026